Perseverant Digital
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A FIELD GUIDE FROM PERSEVERANT DIGITAL · FOR LAW FIRMS

The 5-Minute Follow-Up System

Test how fast your business really answers new inquiries, then set up follow-up that replies in minutes, sounds human, and keeps going until each person books or says no.

THE SHORT ANSWER · 60 WORDS

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New leads should hear from you within minutes, not hours. Harvard Business Review research from 2011 found firms that contacted web leads within an hour were nearly seven times as likely to qualify them. The fix is a simple system: an instant personal reply, a fast call attempt, a two-week follow-up cadence, consent-safe texting, and reminders that protect the appointment.

Why does response speed matter so much?

Speed decides whether you get a conversation at all. People who reach out often contact more than one business, and their attention fades fast.

In March 2011, Harvard Business Review published an audit of 2,241 US companies. Only 37% responded to a web lead within an hour, and 23% never responded. In a separate data set of 1.25 million leads, firms that made contact within an hour were nearly seven times as likely to qualify the lead as firms that waited longer.

Legal is no exception. Clio's UK Legal Trends intake guide (March 24, 2025) describes a secret-shopper test of 500 firms: 48% could not be reached by phone, and only 33% of emailed firms responded.

You don't need more tools. You need your real numbers and a few reliable habits.

What this looks like for law firms

The person who fills out your form at 9 p.m. after a crash or an arrest may be contacting several firms. The first to call back with a clear next step usually gets the consultation.

Your first reply should collect only what you need for a conflict check and a booking. No legal advice, no predicted outcomes, and no “specialist” language unless a lawyer holds the certification (ABA Model Rule 7.1). If an AI chatbot handles intake, Florida Bar Ethics Opinion 24-1 (January 2024) says it should disclose that it is AI and not give legal advice (Hinshaw, February 5, 2024). Texas HB 2733, effective September 1, 2025, extends barratry law to electronic messages, so keep follow-up tied to the inquiry the person started.

The owner pain: lawyers are in court, and nobody owns the after-hours form.

Step 1: How fast does your business really respond?

Test yourself first. Ask a friend to contact your business five ways over one week, using a name your team won’t recognize.

Test	Time to first reply	Who replied (person, bot, nobody)	Asked a question?	Offered a specific time?
Website form, business hours				
Phone call after hours				
Email to your main address				
Social DM				
Your choice (chat, directory listing)				

Score each test, up to 6 points:

- [ ] Reply under 5 minutes: 3. Under 1 hour: 2. Same day: 1. Later or never: 0.
- [ ] A real person, or an auto-reply that said a person would follow up: 1.

- [ ] Asked one useful question: 1.
- [ ] Offered a specific time or booking link: 1.

Your score: ____ out of 30. Fix the lowest channel first. It is usually the one nobody owns.

Step 2: What should happen in the first five minutes?

Every inquiry gets a personal reply, a call attempt and a named owner within five minutes. Automation handles the reply and routing. A person makes the call.

- [ ] **Instant text (with consent) and email** from a named person, saying what happens next. Add your number, hours and a booking link to the email.
- [ ] **Call attempt within five minutes.** The right person gets an alert. Unclaimed after five minutes, it goes to a backup.
- [ ] **Log every attempt** on the contact record, so nobody double-calls or drops the ball.

If the lead is...	It goes to...	Backup after 5 minutes
New, business hours		
New, after hours		
A specific service or location		
A referral partner		

After hours, pick one plan: an auto-reply that names a person and a time ("Maria will call you at 8:30 tomorrow"), an on-call person for clearly defined urgent cases, or a booking link so people can choose a time tonight. A specific promise beats "we'll be in touch soon." Keep it.

Step 3: How do you follow up with leads who go quiet?

Keep going for two weeks, mix channels, and stop the moment they reply, book or opt out. Quiet usually means busy, not uninterested.

Day	Channel	Purpose
0 (first 5 min)	Text + email + call	Confirm and connect
0 (evening)	Text	“We tried you earlier. What time tomorrow works?”
1	Call + voicemail	Name, reason, callback number
2	Email	Answer the question people in their situation ask most
4	Text	“Would a 15-minute call Thursday or Friday be easier?”
7	Call	Second voicemail, different angle
10	Email	What the first appointment looks like, step by step
14	Text or email	Respectful close (template 2)

Write like a person with a real calendar. No exclamation marks, no “just checking in.”

Template 1: first reply

> Hi [First name], this is [Your name] at [Business]. Thanks for reaching out about [topic]. We’ll call you in the next few minutes. If now’s bad, reply with a better time and we’ll work around you.

Template 2: the respectful close

> Hi [First name], we haven’t been able to reach you, so we’ll stop following up for now. If you’d still like help with [topic], reply here or call us at [number]. No pressure either way.

The close often gets the most replies. It tells the truth and makes answering easy.

For a law firm, add to template 1: “Please don’t send details of your situation by text. We’ll go over everything on the call.” Day 2 and day 10 emails should answer process questions, such as what the consultation covers, never legal ones.

Step 4: Is it legal to text leads?

Usually yes, with the right consent and fast opt-outs. This is a factual summary, not legal advice. Have counsel review your forms.

Under the TCPA, prior express written consent is still required for autodialed or prerecorded marketing calls and texts. Since April 11, 2025, people can revoke consent by any reasonable means, such as replying STOP, and opt-outs must be honored within 10 business days. The FCC's "revoke-all" provision is delayed to January 31, 2027 (Burr & Forman), and the separate one-to-one consent rule was vacated by the Eleventh Circuit on January 24, 2025 (Kelley Drye). Under the FTC's CAN-SPAM guide, marketing email, B2B included, needs accurate headers, a postal address and an opt-out honored within 10 business days.

- [ ] An unchecked consent box, separate from submitting the form, with wording counsel has approved.
- [ ] The consent record (date, time, wording, source) saves to the contact.
- [ ] STOP and similar replies, plus opt-outs by phone or email, stop all marketing messages.
- [ ] Quiet hours set for your states, confirmed with counsel.
- [ ] Every marketing email has your postal address and a working unsubscribe.
- [ ] Counsel has confirmed whether your texts and emails count as advertising or solicitation in your state.

Step 5: How do you protect the appointment and keep "not yet" warm?

Confirm right away, remind twice, and make rescheduling easier than skipping. Then give anyone who isn't ready something useful once a month.

When	Channel	Message goal
Right after booking	Text + email	Date, time, place or link, and who they'll meet
24 hours before	Text	Reply C to confirm or R to reschedule (R goes to a person)
2 hours before	Text	Address, parking or link
15 minutes after a no-show	Text + call	"We missed you. Want to pick a new time?"

After a no-show or a "not yet," move the person to a monthly note: one helpful idea, one way to reach a person, no hard sell. Alert a person when they reply, open several emails in a short window, or reach the timeline they gave you ("call me in the spring").

Step 6: What should you measure every week?

Three numbers: median time to first human reply, booked rate (booked ÷ new leads) and show rate (kept ÷ booked). Also count leads with no reply after 24 hours.

Example numbers, not benchmarks: 40 leads, 14 booked, 10 kept is a 35% booked rate and a 71% show rate. If a faster first reply moves bookings to 18 of 40, that is four more conversations a week from the same ad spend.

Each week, ask whoever owns follow-up one question: which lead did we lose, and why?

Where do most owners get stuck?

> **Making it fire reliably across tools.** Forms, phones, calendars and the CRM often come from different vendors. One broken connection means leads silently stop getting replies, and nobody notices for weeks.

> **Routing to the right human fast.** Backups, after-hours rules and service-specific owners get complicated. Most systems route correctly on day one and drift as staff change.

> **Connecting intake to conflicts.** Fast replies help only if the conflict check keeps pace. Wiring intake to your practice management system without exposing case details takes careful setup.

If you'd like help with any of these, book a 25-minute exploration call using the short form at the end of this guide.

Sources

- Harvard Business Review, "The Short Life of Online Sales Leads," March 1, 2011. link
- Clio UK, "Client Intake: Legal Trends," March 24, 2025. link
- Hinshaw & Culbertson, "Florida Bar Advisory Opinion 24-1 Gives Green Light to Generative AI Use by Lawyers With Four Ethical Caveats," February 5, 2024. link
- Texas Legislature, HB 2733 (89th Legislature), effective September 1, 2025. link
- Kelley Drye, "Eleventh Circuit Vacates TCPA 1:1 Consent Rule," January 24, 2025. link
- Burr & Forman, "The FCC Delays Effective Date of TCPA Revoke-All Rule Until January 31, 2027," accessed October 15, 2026. link
- Federal Trade Commission, "CAN-SPAM Act: A Compliance Guide for Business," accessed October 15, 2026. link

Want a second set of eyes on what you found?

Book a free 25-minute exploration call. We will look at your answers with you, name the first fixes in order, and tell you honestly if we are not the right fit.

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